

24STCV05279 24STCV05279

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-02

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Case Number: 24STCV05279 Hearing Date: July 2, 2026 Dept: 735

Doe v. Ryder Integrated Logistics, Inc., et
al.

Defendants' Motion for Summary Judgment, or
in the alternative, Motion for Summary Adjudication

BACKGROUND

On March 1, 2024, Plaintiff John Doe filed a complaint against Defendants Ryder Integrated Logistics, Inc., Ryder Systems, Inc., Omar Carrera and Jose A. Cabrera, asserting causes of action for (1) racial discrimination in violation of FEHA; (2) harassment in violation of FEHA; (3) retaliation in violation of FEHA; (4) fraud and concealment; and (5) negligent misrepresentation.

Plaintiff alleges Defendants hired Plaintiff as a Class A commercial truck driver but after learning Plaintiff is African-American, they instead assigned Plaintiff to drive Class C trucks and perform physical labor not required of Class A drivers. Plaintiff alleges his supervisors made harassing comments about his race and refused investigate the vandalization of Plaintiff's personal vehicle in the work parking lot. Plaintiff also alleges that after he suffered a heart attack, Defendants refused to accommodate Plaintiff's light-duty request and instead placed him on leave. Plaintiff eventually suffered an arm and shoulder injury at work, forcing him to resign.

EVIDENCE OBJECTIONS

“In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion.” (CCP § 437c(q).) Defendants’ objections to Plaintiff’s separate statement are overruled.

DISCUSSION

First Cause of Action for Racial Discrimination in Violation of FEHA

On a motion for summary judgment, the moving Defendant must initially show that under the undisputed material facts, (1) one or more elements of plaintiff’s discrimination claim is without merit, or that (2) defendant’s action was based on legitimate, non-discriminatory factors. (*Arteaga v. Brink’s, Inc.* (2008) 163 Cal.App.4th 327, 344.) Defendants assert that Plaintiff’s claim for discrimination fails because he did not suffer an adverse employment action and because Plaintiff’s work assignments were made for legitimate business reasons. Defendants present evidence showing Plaintiff knew his job would involve touching freight, regardless of the type of vehicle he drove. Defendants assert his text messages to recruiter Ebony Tunstall and manager Josh Williams acknowledged “loading and unloading” for Wine Warehouse (UMF 6); the job description specified 30% loading/unloading and “other duties as assigned” (UMF 8, 20); and he signed an offer letter for that touch-freight role. (UMF 9, 10).

Defendants assert Plaintiff’s trip sheets confirm that Plaintiff drove Class A vehicles (May 22, 24, June 5, 19, July 14, 17–19, 31) and Class C box trucks (May 23, 31, June 1, 7–9, 12–15, July 13, 27–28, 2023), consistent with his job duties and standard practice at Commerce, where all drivers were required to handle freight. (UMF 13, 16, 18). Defendants also state that Plaintiff cannot show non-African American drivers were given Class A assignments as all drivers drove Class A and Class C trucks.

In opposition, Plaintiff presents evidence showing there is a substantial difference in the work required between driving the two different types of vehicles, and Class C assignments required more strenuous physical activity.

Plaintiff asserts Defendants essentially demoted a Class A driver, who held a Class A license and job title, to drive Class C vehicles and do the physical labor involved in unloading those vehicles. Plaintiff argues that Defendants reasons for this assignment are merely pretext and presents evidence showing Jose Morales (Hispanic) and Mike Reviere (Caucasian) are drivers who received either only Class A assignments or predominantly Class A assignments while Plaintiff was regularly given Class C routes. (Pltf. SS ¶ 23, 24.) Plaintiff further testified that during his leave, a Hispanic driver replaced him on Class A routes. (Pltf. SS ¶ 30.) “Pretext may be inferred from the timing of the discharge decision, the identity of the decision-maker, or by the discharged employee's job performance before termination.” (Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 224.) “Pretext may [also] be demonstrated by showing that the proffered reason had no basis in fact, the proffered reason did not actually motivate the discharge, or, the proffered reason was insufficient to motivate discharge.” (Id.) Plaintiff's evidence is sufficient to create a triable issue of fact as to Plaintiff's claim for racial discrimination.

The

Court denies Defendants' motion for summary judgment. The Court denies Defendants' motion for summary adjudication of the first cause of action for discrimination.

Second

Cause of Action for Harassment

The Fair Employment and Housing Act

prohibition on harassment states: “It is an unlawful employment practice. . . . [f]or an employer, . . . because of race, . . . , color, . . . , [or] physical disability, . . . to harass an employee . . .” (Govt. Code, § 12940(j)(1).)

A hostile work environment is a recognized

form of harassment. To establish a hostile work environment, harassment must be so severe or pervasive as to alter the conditions of the victim's employment and create an abusive working environment based on the protected characteristic. (See Hughes v. Pair (2009) 46 Cal.4th 1035, 1043.) Harassment must be of a repeated, routine, or generalized nature when the harassing conduct is not severe. (See Lyle v. Warner Bros. Television Productions (2006) 38 Cal.4th 264, 283.) Harassment that is occasional, isolated or sporadic is insufficient. (See id.)

Defendants assert that the second cause of action fails because Plaintiff cannot show that the alleged harassing comments were racially motivated and because the harassing comments were not severe or pervasive. Plaintiff alleges, and presents evidence showing, immediately after his assignments to box trucks began, Plaintiff voiced concern about those assignments to Cabrera, who responded by saying, "Look around here, we run this place." (Pltf. SS ¶ 80.) Following Cabrera's statement, Plaintiff observed only Hispanic employees at the facility. (Pltf. SS, ¶ 81.) Additionally, in June 2023, once Plaintiff wore a high-visibility safety vest, Cabrera told Plaintiff, "Hey, Daryl, I can see you now. Before, I couldn't see you." (Pltf. SS, ¶ 85.) Plaintiff testified that this comment was a racial jab directed at his skin color. (Pltf. SS, ¶ 86.) As stated, Plaintiff also presents evidence showing non-African American employees were predominantly given Class A assignments. This is sufficient to establish a triable issue of fact as to harassment in violation of FEHA.

The Court denies Defendants' motion for summary adjudication of the second cause of action.

Third
Cause of Action for Retaliation in Violation of FEHA

To establish retaliation under FEHA, a plaintiff must show that "(1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.) A retaliation claim can be brought by an employee who has complained of conduct reasonably believed to be discriminatory. (Id. at 1043; see also Kelley v. Conco Companies (2011) 196 Cal.App.4th 191, 209-10.) "[A]lthough an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim." (Yanowitz, supra, 36 Cal.4th at 1052.)

Defendants argue that the claim for

retaliation fails because Plaintiff did not experience an adverse employment action and because Defendants had legitimate business reasons for their actions. Defendants represent that Plaintiff's mixed Class A and Class C assignments were consistent with facility practices, where all drivers handled freight, and show no deviation before or after July 7, 2023. Defendants argue that denying light-duty was not an adverse action where Jones was given a leave of absence. Defendants represent that Plaintiff's June 2023 doctor's note requested light duty, but Ryder's PMK and managers confirmed no light-duty or drive-only positions existed at Commerce, as all roles required freight handling incompatible with his restrictions. (UMF 39). Jones was thus granted leave as an alternative accommodation and later returned to work on July 13, 2023, and resumed his job duties.

In regard to his work-related shoulder injury reported August 1, 2023, Defendants assert that they again could not provide a light duty accommodation for the restrictions placed by Jones's health care provider. He was sent home on August 2, 2023, because of his refusal to complete an incident report as requested by Cabrera. (UMF 69). Jones's leave was handled by Ryder's workers' compensation team, not his managers at Commerce, and his counsel negotiated the workers' compensation settlement that included his voluntary resignation. (UMF 40, 41, 70).

In opposition, Plaintiff argues there is close temporal proximity between Plaintiff's and his counsels' complaints of discrimination and the adverse employment taken by the Defendants which establishes a causal connection. Plaintiff presents evidence showing after Plaintiff's July 6 internal complaint and his counsel's July 7 demand letter, Defendants maintained their no-light-duty conclusion, routed Plaintiff onto unpaid leave, and upon his return to work, continued to mandate that he perform Class C assignments. (Pltf. SS ¶ 39-42, 47-48.) This is sufficient to create a triable issue of fact as to retaliation.

The Court denies Defendants' motion for summary adjudication of the claim for retaliation.

Fourth and Fifth Causes of Action for Intentional and Negligent Misrepresentation

The elements of fraud are: "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.)

Defendants assert that the claims for intentional and negligent misrepresentation fail because Plaintiff cannot show Defendants misrepresented Plaintiff's job duties, that Plaintiff detrimentally relied on the misrepresentations or that Plaintiff was damaged by the misrepresentations. Defendants present evidence showing Plaintiff knowingly accepted a "Driver Class A Hourly Touch Daily" role requiring manual freight handling, as confirmed by his text messages, the job description, his first-day acknowledgment to managers Jose Cabrera and Omar Carrera, and mixed Class A and Class C assignments consistent with customer-driven practices. (UMF 6, 8, 11, 12, 13, 20). Defendants argue Plaintiff's claim that Defendants "lured" him from Texas with a false no-touch promise (Complaint ¶ 38; UMF 61, 62) is contradicted by his voluntary relocation while on a leave of absence from his current employment with Ryder at the time. (UMF 3, 4).

In opposition, Plaintiff presents evidence showing Ryder's own recruiting documents represented the position as a Class A driving role involving the use of an electric or manual pallet jack. The recruiting calendar invite circulated by Ryder's recruiting system described the position as "Driver Class A Home Daily" in Commerce, California, and identified Cabrera as the hiring manager. (Pltf. SS ¶ 76.) The signed offer letter Plaintiff received, issued by the same Manager Logistics, is titled "Driver Class A Hourly Touch Daily." (Pltf. SS ¶ 10.) Plaintiff asserts Defendants then changed the assignments after hiring and Plaintiff was repeatedly assigned Class C box-truck routes requiring hand-stacking with a two-wheel dolly while Hispanic and Caucasian drivers received the Class A vehicle routes. (Pltf. SS ¶ 16, 18, 23, 24, 30.) Plaintiff asserts Plaintiff accepted the position with Ryder in reliance on Ryder's representations and signed the offer letter that itself bears the title "Driver Class A Hourly Touch Daily." (Pltf. SS ¶ 10.) This is sufficient to create triable issues of fact as to intentional and negligent misrepresentation.

The

Court denies Defendants' motion for summary adjudication of the fourth and fifth causes of action.

Punitive
Damages

Defendants

argue that the claim for punitive damages fails because Plaintiff cannot show any officer, director, or managing agent of Defendant engaged in oppression, fraud, or malice. In opposition, Plaintiff asserts Defendants acknowledge Cabrera's role as Ryder's Manager, Logistics for the Commerce facility. (Pltf. SS ¶ 9.) They further recognized Carrera's position as Senior Logistics Manager. (Pltf. SS ¶ 11.) Moreover, Plaintiff represents that substantial evidence points to Cabrera's exercise of control over the driver assignments at the Commerce facility. (Pltf. SS ¶ 14.) Plaintiff argues that whether their roles constitute managing-agent authority over the discretionary decisions that determine corporate policy at the Commerce site is a question for the factfinder. The Court agrees.

The

Court denies Defendants' motion for summary adjudication of the claim for punitive damages is denied.

CONCLUSION

The Court denies Defendants' motion for summary judgment, or in the alternative, motion for summary adjudication.

Defendants to give notice.